

General Knowledge

Indian Polity

STUDY NOTES

Directive Principles of State Policy

PREAMBLE
PEOPLE OF INDIA, h



DIRECTIVE PRINCIPLES OF STATE POLICIES



Introduction

- **Directive Principles of State Policy** are guidelines for the **State** to ensure the establishment of a **welfare state** and achieving **social, economic, and political justice**.
- These principles are outlined in **Part IV** of the **Indian Constitution** from **Articles 36 to 51**.
- Though **non-justiciable** (not enforceable by courts), they are fundamental in the governance of the country, guiding the **legislature** and **executive** in policymaking.
- They were inspired by the **Irish Constitution** and reflect the framers' desire for India to function as a **social welfare state**.
- They aim to balance **individual rights** (Fundamental Rights) with **community welfare**, promoting **economic democracy** alongside **political democracy**.

Detailed Explanation of Directive Principles of State Policy

- **Non-Justiciable:** Courts cannot enforce them, but they serve as guiding principles for government policies.

- **Instrument of Instructions:** Similar to instructions issued to the Governor-General during the colonial era (Government of India Act, 1935).
- **Welfare State Ideology:** They advocate for the transition from a **police state** to a **welfare state**, focusing on **social and economic democracy**.
- **Interpretation Tool for Courts:** Courts can use Directive Principles to justify the **reasonableness** of a law when determining its constitutionality.
- **Classification of Directive Principles:**
 - **Socialistic Principles:**
 - Promote **social justice** and aim to reduce economic inequality.
 - **Key Provisions:**
 - **Article 38:** Establish a **social order** based on justice and reduce income inequality.
 - **Article 39:** Ensure **right to livelihood**, prevent **concentration of wealth**, and provide **equal pay** for equal work.
 - **Article 41:** Right to **work, education**, and **public assistance** in times of need (old age, unemployment, sickness).
 - **Article 43:** Secure **living wage** and decent standards for workers.
 - **Article 47:** Raise the level of **nutrition** and **public health**.
 - **Gandhian Principles:**
 - Based on Mahatma Gandhi's ideals of **self-sufficiency** and **social justice**.
 - **Key Provisions:**
 - **Article 40:** Organize **village panchayats** for self-governance.
 - **Article 43:** Promote **cottage industries** in rural areas.
 - **Article 46:** Promote the interests of **Scheduled Castes (SCs)** and **Scheduled Tribes (STs)**.
 - **Article 47:** Prohibit consumption of **intoxicating substances** like alcohol.
 - **Article 48:** Prohibit **slaughter of cows** and improve their breeds.
 - **Liberal-Intellectual Principles:**
 - Based on **liberalism** and **scientific development**.
 - **Key Provisions:**
 - **Article 44:** Secure a **Uniform Civil Code** across the country.

- **Article 45:** Provide **free and compulsory education** for children up to 14 years.
- **Article 48A:** Protect the **environment**, forests, and wildlife.
- **Article 49:** Protect **monuments** and sites of national importance.
- **Article 50:** Separate the **judiciary from the executive**.
- **Article 51:** Promote **international peace** and uphold international law.

● **New Directive Principles:**

- Added by amendments to further social welfare goals:
 - **42nd Amendment (1976):** Added principles promoting **legal aid**, **worker participation** in management, and **environment protection**.
 - **86th Amendment (2002):** Made **elementary education** a fundamental right under Article 21A.
 - **97th Amendment (2011):** Added Article 43B promoting **cooperative societies**.

● **Landmark Cases Related to DPSP:**

● **Champakam Dorairajan Case (1951):**

- The Supreme Court ruled that **Fundamental Rights** prevail over **Directive Principles** in case of conflict. This led to several constitutional amendments (1st, 4th, 17th) to implement certain DPSP.

● **Golaknath Case (1967):**

- The Court held that **Fundamental Rights** are "sacrosanct" and cannot be amended to implement DPSP. This prompted Parliament to pass the **24th** and **25th Amendment Acts (1971)**, affirming the right to amend Fundamental Rights.

● **Kesavananda Bharati Case (1973):**

- The Supreme Court upheld that while **Directive Principles** are important, they cannot override the **basic structure** of the Constitution. The Court recognized the balance between **Fundamental Rights** and DPSP.

● **Minerva Mills Case (1980):**

- The Supreme Court ruled that giving absolute primacy to DPSP over Fundamental Rights (Articles 14, 19) would disturb the balance of the Constitution, reaffirming their subordinate position.

● **Sanction Behind Directive Principles:**

- While **non-justiciable**, they impose a **moral obligation** on the State, and non-compliance may result in **political consequences** at election time.
- The **Constitution** mandates the State to **apply these principles** while making laws (Article 37).

● Criticism of Directive Principles:

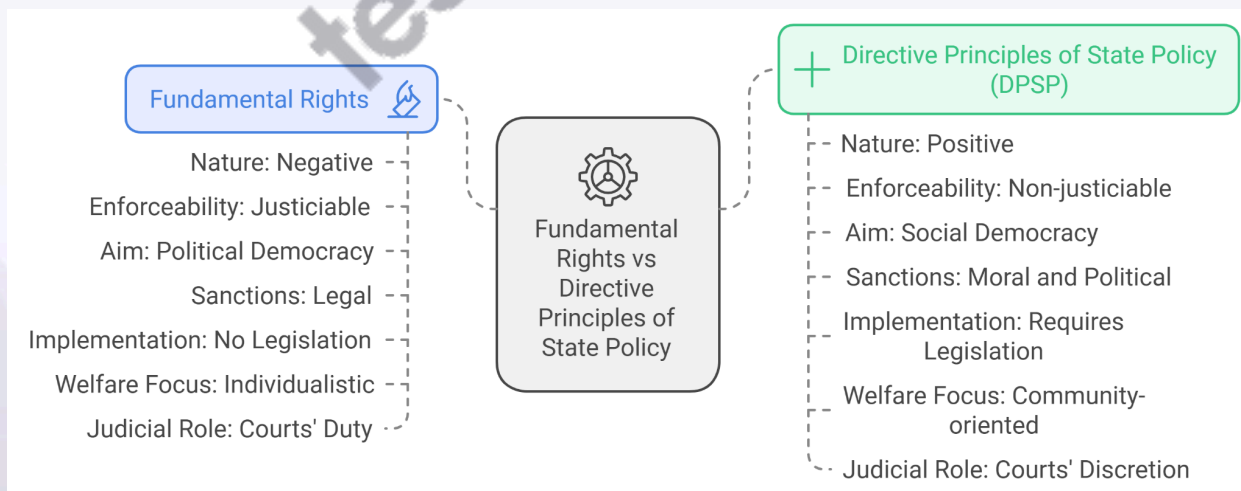
- **No Legal Force:** They are often criticized for their **non-justiciable** nature.
- **Illogical Arrangement:** Some argue the principles lack a logical sequence or unified philosophy.
- **Constitutional Conflict:** Their non-enforceability can create tension between the **Centre** and **States** regarding their implementation.

● Utility of Directive Principles:

- They provide a **framework** for future **legislation** and policy-making.
- Serve as a **yardstick** for assessing government performance and social progress.
- Help ensure **social justice**, economic equality, and **sustainable development**.

● Conflict Between Fundamental Rights and Directive Principles:

- The **Supreme Court** initially held that **Fundamental Rights** prevail over **Directive Principles** (Champakam Dorairajan case, 1951).
- Subsequent amendments (e.g., **25th Amendment, 1971**) aimed to harmonize the two, especially on social welfare policies.
- **Kesavananda Bharati case (1973)** reaffirmed the balance between the two, asserting that Directive Principles cannot override **Fundamental Rights** but can guide their interpretation.



● Implementation of Directive Principles:

- Key Acts and Policies:

- **Land Reform Laws:** Abolished **zamindari** and redistributed land.
- **Minimum Wages Act (1948), Equal Remuneration Act (1976).**
- **Nationalization** of major industries (banks, insurance).
- **Panchayati Raj** system through the **73rd Amendment (1992).**
- **National Rural Employment Guarantee Scheme (2006):** Provided employment for rural laborers.
- **Protection of Monuments and Wildlife** through legislative acts.
- **NITI Aayog** replaced the Planning Commission in 2015 to promote balanced development.

- **Points to Remember:**

1. **DPSP** are guidelines for the **State** to ensure **social welfare** but are not legally enforceable.
2. They aim to establish **social, economic, and political justice.**
3. **Socialistic, Gandhian, and Liberal-Intellectual** principles form the core of DPSP.
4. The **Supreme Court** has sought to balance **Fundamental Rights** and **Directive Principles** through landmark judgments.
5. Significant policies such as **land reforms, rural employment programs, and free education** were implemented to fulfill DPSP.